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Case Number: 25STCV21261 Hearing Date: September 23, 2026 Dept: 509

Allen Shadgoo v. Volkswagen Group of America, Inc.

MOTION FOR ATTORNEY'S FEES AND COSTS

MOVING PARTY: Plaintiff Allen Shadgoo

RESPONDING PARTY(S): Defendant Volkswagen Group of America, Inc.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a Song-Beverly action. Plaintiff Allen Shadgoo (Plaintiff) leased a 2023 Audi E-tron manufactured by defendant Volkswagen Group of America, Inc. (Defendant). Plaintiff alleges the vehicle failed to conform to applicable warranties.

On August 10, 2026, Plaintiff filed this instant motion to recover their reasonable attorney's fees and costs as prevailing party. Defendant did not originally oppose this motion.

On September 9, 2026, this motion originally came to hearing. The Court continued the hearing to allow Plaintiff to file an opposition. On September 14, 2026, Defendant filed an opposition. On September 21, 2026, Plaintiff filed a reply. This Court has read and considered all of those pleadings.

TENTATIVE RULING:

Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$36,750.00.

Plaintiff's Motion for Costs is GRANTED in the amount of \$4,140.05.

Plaintiff is ordered to give notice, unless waived.

DISCUSSION:

Motion for Attorney's Fees

I. Analysis

A. Entitlement to Fees

On June 30, 2026, the parties resolved this case. (Barry Decl. ¶18, Ex. 1.) Pursuant to the settlement agreement, Defendant agreed that Plaintiff was the prevailing party and entitled to attorney's fees, costs, and expenses. (Ibid.)

Plaintiff now move for an order awarding attorney's fees and costs totaling \$64,080.55. This amount consists of: (1) \$59,940.50 in attorney fees and (2) \$4,140.05 in costs and expenses. (Mot. at p. 11.)

Civil Code, section 1794(d) provides:

(d) If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code, § 1794, subd. (d) [emphasis added].)

Here, there appears no reasonable dispute that Plaintiff is the prevailing party under the Song-Beverly Consumer Warranty Act and the Settlement Agreement between the parties allows Plaintiff to recover their reasonable fees. Accordingly, Plaintiff is entitled to an award of reasonable attorney fees as the prevailing party.

B. Reasonableness of Fees (Lodestar)

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal.App.4th 1127, 1134.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal.App.4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal.4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The Court has broad discretion in determining the amount of a reasonable attorney's fee award which will not be overturned absent a "manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence." (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1393-94.) The Court need not explain its calculation of the amount of attorney's fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

It should be noted that state trial court opinions are unpublished and have no precedential value. (Neary v. Regents of Univ. of Calif. (1992) 3 Cal.4th 273, 282.) Likewise, "[w]hile unpublished federal district court opinions are citable, they do not constitute binding authority." (Gong v. City of Rosemead (2014) 226 Cal.App.4th 363, 375.)

1. Reasonable Hourly Rate

Plaintiffs were represented by The Barry Law Firm, which staffed five attorneys on the matter. The attorney's billed between \$375 and \$695 per hour. (Barry Decl., Exh. 2.)

Plaintiff is seeking 109.6 hours for a total of \$59,940.50. (Mot. at p. 11.) This gives a blended hourly rate of \$546.90 per hour. [FN 1] Here, under the totality of the circumstances and based upon general prevailing rates in the Los Angeles area for this type of litigation, this Court finds that a blended rate of \$546.90 per hour is unreasonable given this Court's considerable experience in Song-Beverly cases, many of which culminate with an attorney's fees motion. The Court will consider a blended hourly rate of \$525 per hour. This determination considers the complexity of the case, the quality of services provided, and the attorneys' experience. An award at this rate comes with the expectation that the attorney works in an efficient manner that reflects the premium paid for his or her services. The Court considers this fact in addressing the reasonableness of the hours expended.

2. Number of Hours Reasonably Expended

Beginning to end, Plaintiff seeks compensation for a total of 109.6 hours in this case. (Mot. at p. 11.) Of those hours, 11.1 hours includes this instant motion, the anticipated response to a motion to tax costs, as well as anticipated expenses at this hearing.

"It is the burden of the challenging party to point to the specific items challenged [within the moving party's verified billing invoice], with a sufficient argument and citations to evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488.)

In opposition, Defendant contends the hours purportedly spent by Plaintiff's counsel are excessive. Defendant highlights multiple entries in the billing records it contends are excessive and duplicative. This Court agrees in part.

Here, this action was filed July 18, 2025. The docket reflects motion practice including a demurrer and multiple discovery motions brought by both parties. No party was awarded sanctions on the discovery motions. This action lasted less than a year and there was nothing particularly complex or unique about this case. The issues involved were applicable to other consumers' vehicles, thereby triggering economies of scale in terms of Plaintiff's counsel's efficiency in litigating this type of lemon law case. Litigating this matter should not have required anything more than slight factual modification to existing boilerplate. Consistent with these observations, Counsel's billing records reflect a series of repetitive administrative-type tasks. Further, Plaintiff's counsel has brought similar attorney's fees motions routinely demonstrating proficiency in filing such motions. Therefore, this instant motion should have taken minimal effort given Plaintiff counsel's extensive experience in bringing these motions for attorney fees.

Finally, a significant portion of fees were incurred during initial discovery disputes. It should be noted that although this action was filed in July 2025, the new Song-Beverly Laws did not apply because Defendant did not opt in. (See 11/20/25 Minute Order.) These new laws, which were designed to streamline and economize the discovery process, may have lessened the significant efforts expended by both parties in discovery. (See e.g. Civil Code §871.26.) However, the new laws did not apply in the instant case.

Considering these facts, this Court ultimately agrees that in some instances, the time quoted is excessive under the circumstances. In light of the foregoing discussion, and in view of the totality of the circumstances, the Court finds that the total amount of reasonable attorney's fees in this case, using a lodestar methodology, is \$36,750.00. This was calculated by

multiplying the hourly rate of \$525 by 70 hours, which this Court deems to be the reasonable time spent on all tasks in the matter including the time spent in support of this instant motion and the anticipated time spent at the hearing.

Accordingly, Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$36,750.00.

C. Motion for Costs

Plaintiff seeks costs in the amount of \$4,140.05. (Memo. Of Costs.) Here, Defendant did not challenge the memorandum of costs. (See Opp. at p. 5:27-28.)

Accordingly, Plaintiff's Motion for Costs is GRANTED in the requested amount of \$4,140.05.

IT IS SO ORDERED.

Dated: September 23, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1- It is well settled that utilizing a "blended" hourly rate for lodestar methodology is accepted in Song Beverly attorney's fee motions. (See, e.g, Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240.)

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.